

Texas Annuity Best-Interest and Replacement Framework

Official source: Official Texas Legislature and Texas Department of Insurance public sources

Texas Insurance Code Chapter 1115

Texas adopted an annuity best-interest framework applicable to annuity recommendations and sales, including care, disclosure, conflict-of-interest, documentation, supervision, training, and safe-harbor concepts.

28 TAC §§3.9721-3.9722

TDI adopted annuity-suitability disclosure rules implementing Chapter 1115 and prescribing FIN194, FIN195, and FIN196 for applicable transactions.

Texas Insurance Code Chapter 1114

Chapter 1114 governs replacement of life insurance and annuities and should be reviewed whenever an existing contract may be lapsed, surrendered, forfeited, assigned, amended, or otherwise changed in connection with a new contract.

Primary-source note

The enclosed TDI adoption PDF contains the official adopted rule explanation and text. Transaction review should also use the current Texas statutory text and current TDI forms.